

The Cooch Behar (Assimilation of Laws) Act, 1950

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[Act 67 of 1950](#)

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[An Act to assimilate certain laws in force in Cooch-Behar to the laws in force in the rest of West Bengal.](#)

[BE it enacted by Parliament as follows:-](#)

[1.](#)

[Short title and commencement.-](#)

[\(1\)](#)

[This Act may be called the Cooch-Behar \(Assimilation of Laws\) Act, 1950.](#)

[\(2\)](#)

[It shall come into force on such date¹ as the Central Government may, by notification in the Official Gazette, appoint.](#)

[1. 1st January, 1951, see Gazette of India, 1950, Part II, s. 3.](#)

[2.](#)

[Interpretation.-](#)

In this Act,-

(a)

"appointed day" means the date appointed under sub-section (2) of section 1 for the coming into force of this Act;

(b)

"Cooch-Behar" means the merged territory of Cooch-Behar in the State of West Bengal;

(c)

"law" means so much of any Act, Ordinance, Regulation, rule, order or bye-law as relates to any of the matters enumerated in Lists I and III in the Seventh Schedule to the Constitution.

3.

Assimilation of laws.-

(1)

Save as provided in sub-section (2), all laws which immediately before the appointed day extend to, or are in force in, the State of West Bengal, but do not extend to, or are not in force in, Cooch-Behar shall, as from that day, extend to, or as the case may be, come into force in, Cooch-Behar; and all laws which, immediately before the appointed day, are in force in Cooch-Behar, but not in the rest of West Bengal, shall on that day cease to be in force in Cooch-Behar, except as respects things done or omitted to be done before that day.

(2)

Notwithstanding anything contained in sub-section (1), the Muslim Personal Law (Shariat) Application Act, 1937 (26 of 1937) shall come into force in Cooch-Behar only on such date as the State Government may, by notification in the Official Gazette, appoint; and Cooch-Behar Act 2 of 1897, known as the Muhammadan Inheritance Act, 1897, shall continue in force in Cooch-Behar until that date, and shall on that date cease to be in force except as respects things done or omitted to be done before that date.

4.

Provision for removal of difficulties.-

If any difficulty arises in relation to the transition under section 3 from one law or group of laws to another law or group of laws, the Central Government may, by order notified in the Official Gazette, make such provision as it considers necessary for the removal of such difficulty.

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